Pierce v. Turner.

E. J. Lee, for the plaintiff in error.—By marriage, all the personal estate of the wife becomes the absolute property of the husband. The operation of this principle can only be prevented, by pursuing strictly the mode pointed out by law. This deed wants those legal solemnities which the law requires to make it valid against creditors. The plaintiff is a creditor; the deed is, therefore, not valid against him. The word creditor, in the act of assembly, means not only the creditors of the grantor, but the creditors of every person whose debts could have been legally satisfied out of the property, if such deed had not been made. If the word is to have the limited construction contended for on the other side, and the deed be void only as to her creditors, and as to subsequent purchasers from her, the statute becomes nugatory; because, after marriage, she has no creditors, and cannot sell and convey. Her creditors have become his creditors; her debts have become his debts. If the deed be void as to her creditors, it must be void as to his creditors. If she can neither sell nor have creditors, the act must apply to his creditors, or it will be idle and unavailing.

If the husband had sold these slaves to persons ignorant of the deed, the sale would have been valid. *If he had been trusted upon the faith of this property, which he had in his possession, and which was supposed to have come by his wife, such creditors, who were ignorant of the deed, would have a right to payment out of this property. If they could not, the possession of the slaves would have been a fraud upon such creditors. [*158

It is true, in the present case, the debt was contracted before the marriage, but that cannot alter the principle of law. If the deed be void as to any of his creditors, it is void as to all. The term creditors is general, and literally comprehends creditors of the husband, as well as creditors of the wife. Where the words of a statute are plain, the court cannot indulge any latitude of construction, but must pursue the words. 3 Call 106; *Eppes* v. *Randolph*, 2 Ibid. 183.

If the property was liable for the husband's debts, it was assets, ano her appropriating it to her own use, makes her an executrix in her own wrong (Toller 17); although she did it, claiming them as her own, and under a void deed (2 Vin. Abr. 211; *Edwards* v. *Mercer*, 2 T. R. 588; *Hawes* v. *Loring*, Cro. Jac. 270; 2 Bac. Abr. 338; 5 Co. 34 *a*), even if there be a right ful administrator. But the possession taken by the sheriff of Northumberland county was not an administration. 2 T. R. 97.

If this deed be valid against creditors, no marriage settlement need be recorded. It renders unnecessary all the precaution which the legislature so anxiously took to prevent this kind of fraud and imposition.

C. Simms, P. B. Key and *Jones*, contrà.—The act for regulating conveyances, as it relates to creditors and their debtors, was intended to protect the former against secret deeds and conveyances made by the latter; it never was intended to *injure the rights of third persons, who do not claim under the debtor. Lord MANSFIELD, in the case of *Cadogan* v. *Kennett*, Cowp. 434, speaking of the statute of 13 Eliz., c. 5, which relates to frauds against creditors, says, that "such a construction is not to be given in support of creditors, as will make third persons sufferers." [*159

If there is any difficulty in the construction of this act, it arises from the